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Skittles, Hot Tamales, more could be banned in California in legislation that targets harmful chemicals in food

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Author: Robert Higgs; cleveland.com | Section: Nation | 378 Words
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SACRAMENTO, Calif. -- Sale of common candies such as Skittles, Hot Tamales and Dubble Bubble gum would be barred in California under legislation introduced to protect consumers from toxic ingredients.

California Assemblywoman Jesse Gabriel, a Democrat from the Woodland Hills area of Los Angeles, introduced legislation that would ban the sale of processed foods that contain chemicals she says the Food and Drug Administration has not adequately regulated. The legislation was referred to committees for hearings.

"Californians shouldn't have to worry that the food they buy in their neighborhood grocery store might be full of dangerous additives or toxic chemicals," Gabriel said in a statement. "This bill will correct for a concerning lack of federal oversight and help protect our kids, public health, and the safety of our food supply."

The legislation would prohibit the manufacture, sale or distribution of any food product in California containing red dye No. 3, titanium dioxide, potassium bromate, brominated vegetable oil or propyl paraben.

The fruit-flavored candy Skittles, made by the Wrigley Co., a division of Mars, contains titanium dioxide.

Hot Tamales, made by Just Born Inc., and Dubble Bubble, made by Tootsie Roll Industries, each contain red dye No. 3.

The European Union already bans those chemicals from food products due to scientific studies that have demonstrated significant public health harms, Gabriel said. Among those are increased risk of cancer, behavioral issues in children, harm to the reproductive system and damage to the immune system.

Currently, there are thousands of chemicals added to food to make it last longer, taste better and appear more enticing, Gabrield said.

Many have never been independently evaluated by the FDA or were last reviewed decades ago. Instead, these chemicals have entered the nation's food supply through a loophole in federal law — known as GRAS, or "generally recognized as safe" — that was intended to apply to common household ingredients like vinegar.

Susan Little, the Environmental Working Group's governmental affairs senior advocate for California, questioned why chemicals would ever be allowed in food supply.

"We know they are harmful and that children are likely eating more of these chemicals than adults," Little said in a statement. "It makes no sense that the same products food manufacturers sell in California are sold in the EU but without these toxic chemicals."

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